IN THE DISTRICT COURT, NEW EDUBIASE

HELD ON FRIDAY 28TH MARCH, 2025

BEFORE HER WORSHIP ANASTACIA Y.A. KARIMU ESQ.

CASE NO: CC115/2023

THE REPUBLIC

VRS.

1. TIEKU FRIMPONG

2. THOMAS DANQUAH TIEKU

JUDGMENT

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1. The accused persons were first arraigned before this court differently constituted on 16th June, 2023 for the offence of assault contrary to section 84 of the Criminal Offences Act, 1960 (Act 29). They pleaded not guilty. Consequently, the prosecution was called upon to prove its case.

2. The facts as presented by the prosecution are that complainant Thomas Awusi is the younger brother of the first accused person and the uncle of the second accused person. On 28th May 2023, the final funeral rites celebration of the complainant and the first accused person's mother was held at Adansi Apagya. While the celebration was in progress, the complainant was appointed to succeed their mother. However, the first accused person vehemently objected to the appointment of the complainant. After the funeral service, the complainant hosted some of his guests at one Yaw Boafo Drinking Spot. As the complainant and his guests were leaving the drinking spot, the accused persons arrived. Suddenly the first accused person pounced on the complainant and held his shirt against his neck and the second accused person slapped him on

his face. The complainant was rescued from the accused persons grips. However, the sum of GH¢2,200.00 being funeral donations which was in the complainant's pocket went missing at the scene. After the incident the complainant reported the matter at the New Edubiase DOVVSU desk. He was issued with a police medical form to attend hospital for endorsement. On 12th May, 2023 the police arrested the accused persons at the New Edubiase police station. In their respective investigation cautioned statements they accused persons denied the offence. However, after investigations they were found culpable, charged and put before this court.

3. It is a fundamental rule of our criminal practice that an accused person is presumed to be innocent until proven guilty by a court of competent jurisdiction. This is enshrined in **Article 19(2)(c) of the Constitution, 1992** as follows *"(2) a person charged with a criminal offence shall… (c) be presumed innocent until he is proved guilty or has pleaded guilty."* Hence, in all criminal trials, the burden of proving crime lies with the prosecution who have alleged that the accused person has committed the offence charged.

4. In the case of **Woolmington v. DPP (1935) AC 462**, Viscount Sankey LC stated the principle as follows: *"Throughout the web of the English criminal law one golden thread is always seen, that it is the duty of the prosecution to prove the prisoner's guilt subject to what I have already said as to the defence of insanity and subject to any statutory exception."*

5. Also, in the case of **Commissioner of Police v. Antwi [1961] 1 GLR 408**, the Supreme Court held that *"The fundamental principles underlying the rule of law are that the burden of proof remains throughout on the prosecution and the evidential burden shifts to the accused only if at the end of the case of the prosecution an explanation for circumstances particularly within the knowledge of the accused is called*

for. The accused is not required to prove anything, if he can merely raise reasonable doubt as to his guilt, he must be acquitted."

6. The **Evidence Act, 1975 (NRCD 323)** provides for how this burden above ought to be discharged and that is by the production of sufficient evidence to establish the guilt of the accused person beyond a reasonable doubt. **Section 11 (2)** of **NRCD 323** provides that: *"In a criminal action the burden of producing evidence when on the prosecution as to any fact which is essential to guilt requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond a reasonable doubt."*

7. **Section 13 (1) of NRCD 323** also provides that: *"In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt."*

8. Sufficient evidence is not limited to a fixed number of witnesses nor to certain types of evidence. What is required of the prosecution is to produce enough evidence from which the guilt of the accused can be inferred. Thus, in **Boakye v. The Republic [1999-2000] 1 GLR 740** it was held that the evidence of just one credible witness if believed was enough to support a criminal conviction for a grievous offence such as murder. So long as the rules of admissibility in **NRCD 323** are complied with, evidence adduced by the prosecution will be deemed sufficient if it meets the standard of proof required by the law.

9. It is trite learning that the standard of proof of crime is proof beyond a reasonable doubt. Proof beyond reasonable doubt was defined in the case of **Miller v. Minister of Pension (1947) 2 AER 372** by Lord Denning J (as he then was) as follows:

"Proof beyond reasonable doubt does not mean proof beyond a shadow of doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is strong against a man as to leave a remote possibility in his favour which can be dismissed with the sentence 'of course it is possible but not the least probable,' the case is proved beyond reasonable doubt, but nothing short of that will suffice."

10. In the case of **Abdulai Fuseini v. The Republic [2020] CRIM LR 331**, Dotse, JSC (as he then was) stressed that the term 'beyond a reasonable doubt' means the prosecution must be sure that sufficient evidence has been shown to establish the ingredients of the offence for which an accused person has been charged so that on the whole of the evidence the court would be satisfied that the accused person has in fact committed the offence.

11. However, before the prosecution can be said to have proved a crime beyond a reasonable doubt and obtain conviction against the accused, they had to overcome the first hurdle, which was to establish a prima facie case against the accused persons. This hurdle they overcame on 19th June, 2024 when the court called upon the accused persons to open their defence after finding the evidence of the prosecution sufficiently established a prima facie case against them. On 30th October, 2024 the accused persons opened their defence and closed same on 24th January, 2025. The court will now proceed to analysis the defence of the accused persons vis-a-vie that of the prosecution.

12. The prosecution called three witnesses in support of its case: the complainant (PW1), two eyewitnesses (PW2 and PW3), and the investigator in charge of the case (PW4).

13. According to PW1 Thomas Awusi, on 28th May, 2023 he went to Adansi Apagya to celebrate the final funeral rites of his late mother Adwoa Donkor. After the funeral, he took the cash donation box and accompanied some of the family members to his mother's house. At his mother's house, he counted the cash donations in the presence of the family members. The total sum was GH¢2,200.00. He placed the said amount in a black polythene bag and put it in his pocket. He then accompanied his uncle Kwaku Asiamah and others to Yaw Boafo's drinking spot to offer them drinks. As they were leaving the drinking spot, the accused persons came there. The first accused person held his shirt firmly against his neck from behind and asked him "Who appointed you to succeed out late mother?" The second accused person also held his shirt firmly and slapped his face. A struggle ensued between him and the accused persons. His older brother Kwabena Nkansah rescued him from the scene. He later realised that the cash donation in his pocket was missing. He reported the matter to the New Edubiase police station where he was issued with a police medical form. He attended the New Edubiase Government Hospital where he was examined. He submitted the medical dorm duly endorsed to the investigator.

14. In his evidence PW2 Kwabena Nkansah stated that the complainant is his younger brother. Their mother Adwoa Donkor died in 2020. The family held her final funeral rites on 28th May, 2023 at Adansi Apagya. All his siblings were present for the funeral rites which ended around 6:00pm. They took the cash donation box to their late mother's house where the complainant counted the cash which was GH¢2,100.00. The complainant tied the money in a polythene bag and put it in his pocket. The complainant then took him, Baffour Kyei, Uncle Asiamah and others to Yaw Boafo's spot where he bought them drinks. He was standing on Yaw Boafo's compound with the others when the accused persons came there. The accused persons rushed on the complainant and held

his shirt simultaneously and began to beat him. They ran to the aid of the complainant and rescued him. After the incident, they took the complainant from the scene. Later the complainant informed them that the cash donation was missing.

15. In his evidence-in-chief, PW3 Kwaku Asiamah testified that the complainant and the first accused person are his nephews while the second accused person is the son of the first accused person. On 28th May, 2023 the final funeral rites celebration of their late mother was held at Adansi Apagya. The family appointed the complainant to succeed their mother, and an announcement was made to that effect. All the siblings were present at the funeral celebration which ended around 6:00pm. The complainant took the cash donation box to their mother's house. They accompanied him there. At the house, the donation was counted, and they received an amount of GH¢2,100.00. However, he does not remember where the money was kept after it was counted. The complainant then took them to Yaw Boafo's drinking spot and bought them drinks. As they were leaving the spot, he saw the accused persons in Yaw Boafo's compound where the spot is located. Suddenly, the accused persons held the complainant's shirt firmly around his neck. He saw the complainant struggling to free himself from the accused persons. In the course of the struggle, the second accused person unintentionally hit the complainant's face. He did not see the first accused person beating the complainant. They all run to the scene and took the complainant away. They were later informed by the complainant that the cash donation he put in his pocket was missing.

16. In her evidence before the court, D/Pw/ Inspector Ernestina Awanu stated that on 28th May, 2023 at 7:50pm, a case of assault reported by the complainant against the accused persons was referred to her for investigations. She took a statement from the complainant and issued him with a police medical report

form to attend hospital for examination and endorsement. She also took statements from the Baffour Kyei, Kwabena Nkansah, Kwaku Asiamah, Opanin Opoku Piesie, and Yaw Boafo. On 12th June, 2023 she arrested the accused persons after they were identified by the complainant as his assailants. She informed them of the reason for their arrest and took cautioned statements from them. After the close of her investigations, she was instructed to charge the accused persons for the offence of assault which she did by obtaining charge statements from them. She tendered the following into evidence:

a. Exhibit A - the investigation cautioned statement of the first accused person dated 12th June, 2023
b. Exhibit B - the investigation caution statement of the second accused person dated 13th June, 2023
c. Exhibit C - the charge statement of the first accused person dated 13th June, 2023.
d. Exhibit D - the charge statement of the second accused person dated 13th June, 2023.
e. Exhibit E - the endorsed Police medical report form issued to the first complainant dated 30th May, 2023.

17. The witness statements of Opanin Opoku Piesie filed on 1st September, 2023 was tendered through PW4 and admitted as Exhibit 1. The witness statement of Yaw Boafo filed on 1st September, 2023 was also tendered through the investigator and admitted as Exhibit 2.

18. When the accused persons were ordered to open their defence, they elected not to say anything but called two witnesses, Yaw Boafo (DW1) and Kofie Botie (DW2) to testify on their behalf.

19. According to the evidence of DW1, his wife Margret Addai operates a drinking spot in his house. On 28th May, 2023 the complainant came to the drinking spot with four people and bought them drinks. After drinking, the four left while the complainant waited for his change from his wife. After taking the change, the complainant headed toward the gate. He sat on the veranda with his wife. Shortly after the complainant left, they heard his voice and that of the first accused person. They ran to the gate and there saw the complainant and the first accused person's firmly holding each other's clothe against their necks. With help of the people around, they separated the complainant and the first accused person. The second accused person was at the scene, but he did not take part in the act. He did not see the accused persons beating the complainant. The four people whom the complainant brought to his house for drinks were not at the scene at the time the incident happened but came later. He tendered in evidence his witness statement filed by the prosecution on 1st September, 2024 which was admitted and tendered as Exhibit 3.

20. In his evidence, DW2 stated that on 28th May, 2023 at the funeral of the late Adwoa Donkor, the complainant's friend Kwame Kyei took the microphone and announced that Amos Kwabena Nkansah is the successor of the late Kwabena Aboagye while the complainant is the successor to his later sister Adwoa Donkor. The first accused person counted this announcement by stating that Kwame Kyei is not a family member and cannot appoint a successor to his late sister and added that according to the norms of their family, the family will be celebrating the one year anniversary of his late sister on 30th May, 2023. It was at this celebration that a successor to his late sister will be appointed. After the celebration, he went with the accused persons to the house of the head of family to inform him about what occurred during the funeral rites. At the head of family's house, they met Kwame Sarpong and one Ampomah who had been appointed by the head of family to represent him at

the funeral due to his old age. They were informed by the head of family that the issue will be resolved on 30th May, 2023 to observe the one year anniversary of the late Adwoa Donkor. On their way from the head of family's house, the met the complainant and the accused persons at the entrance of the house of Yaw Boafo. The complainant pushed and held firmly the mourning cloth of A1 around his neck. A1 pushed the complainant to save himself. The accused persons did not beat the complainant, neither was the complainant touched. He is just a troublesome person who always wants to call for a fight where there is no issue.

21. In his submission on behalf of the accused persons, counsel submitted that the evidence of PW1, PW2, and PW3 were full of inconsistencies and same should inure to the benefit of the accused persons. The first inconsistency he points to is the evidence on oath of PW1 as opposed to Exhibit E. In his evidence on oath PW1 claimed to have been beaten by the accused persons on 28th May, 2023. He was issued with a medical report on the same day but went to the hospital on 30th May, 2023. At the hospital, he informed the medical officer that he was assaulted by three men two days prior.

22. The second inconsistency is the evidence of PW1 vis-a-vie PW2 and PW3's evidence. PW1 testified that he was coming out of Yaw Boafo's drinking spot with PW2, PW3 and Kyei Baffour when he was attacked by the accused persons. however, this assertion was denied by the accused persons and confirmed by the evidence of PW2 and PW3. The third inconsistency is found in Exhibit 1. Kyei Baffour stated that he did not see the accused persons beat the complainant. The prosecution witnesses having been discredited, the prosecution has failed to prove the elements of the offence of assault against the accused person. Therefore, the accused persons ought to be acquitted and discharged.

23. **Section 84 of the Criminal Offences Act, 1960 (Act 29)** provides as follows: "*A person who unlawfully assaults another person commits a misdemeanour.*" From this provision, the prosecution is required to prove that:
    a. the accused persons forcibly touched the complainant
    b. That the touch was without his consent, and
    c. That the accused persons touched him with intent to cause him harm, pain, fear, or annoyance.

24. **Section 86(1) of Act 29** defines assault and battery as follows: "*A person makes an assault and battery on another person, if without the other person's consent, and with the intention of causing harm, pain, or fear, or annoyance to the other person, or of exciting the other person to anger, that person forcibly touches the other person.*"

25. **Section 86(2)(c) and (d) of Act 29** defines touch as follows: *"(c) the slightest actual touch suffices for assault and battery, if the intention is an intention as is required by this section. (d) a person is touched, within the meaning of this section, if the body is touched, or if the clothes or any other thing in contact with the body or with the clothes on the body are or is touched, although the body is not actually touched..."*

26. It is inconsequential whether by their touch, the accused persons intended to cause harm, pain, fear or annoyance to the complainant. What matters is the outcome of the touch. **Section 86(2)(e) of Act 29** defines intention as follows: "*for the purpose of this section, with respect to intention to cause harm, pain, or fear or annoyance, it is immaterial whether the intention is to cause the harm, pain, fear, or annoyance by the force or manner of the touch itself or to forcibly expose the person, or cause that person to be exposed, to harm, pain, fear, or annoyance from any other cause.*"

27. In the case of **Comfort and Another v. The Republic [1974] 2 GLR 1,** the court held that *"By section 86(1) of the Criminal Code, 1960 (Act 29), a person commits an assault and battery when, essentially, there does not exist the other person's consent. Consent, therefore, generally negatives any offence of assault."*

28. Proof of physical harm is not a requirement for the offence of assault and battery. In the case of **Asante v. The Republic [1972] 2 GLR 177,** the court held that *"Proof of assault is established by evidence of conduct of the accused falling within one or the other of the definitions of assault in sections 86, 87, and 88 of Act 29; but proof of any act of the accused indicating an intention to use violence…would suffice."*

29. The evidence of PW1 and PW2 is that the accused persons assaulted PW1, while the evidence of the defence witnesses is that no assault took place on the day in question. The essential evidence of PW1 is found in paragraphs 12, 13, 14, and 15 of his witness statement:

> *"As we were leaving the drinking spot, A1 and A2 came there. A1 held my shirt firmly against my neck from behind and asked me 'who appointed you to succeed our late mother?' A2 also held my shirt firmly and slapped me. My elder brother Amos Kwabena Nkansah rescued me and took me from the scene*."

30. That of PW2 is found in paragraphs 12, 13, and 14 as follows:

> *"I was standing at Yaw Boafo's compound with other witnesses when our elder brother Teiku Frimpong (A1) and Thomas Tieku (A2) also came there. A1 and A2 rushed on complainant and held his shirt simultaneously and began to beat him. We all ran to the aid of Thomas Awusi and rescued him."*

31. The evidence of the defence witnesses is that PW1 was the aggressor of A1. According to them, the complainant, without provocation, held the mourning

cloth of A1 firmly against his neck. A1 then attempted to free himself from PW1's grip. Even though A2 was present at the scene, he did not take part in the scuffle between PW1 and A1. This is what DW2 said in paragraphs 10, 11, and 12 of his witness statement:

> *"When we were returning from the Head of family's house, at the entrance of the house of Yaw Boafo, we met the complainant, and the complainant pushed and held firmly the mourning cloth of the 1st accused person around the 1st accused person's neck. The 1st accused person then pushed the complainant to save himself. The 1st accused person neither the 2nd accused person beat the complainant. No one touched the complainant; he is a troublesome person and always want to call for a fight when there is no issue."*

32. This evidence was confirmed by DW1 who testified that he saw PW1 holding A1's mourning cloth firmly against his neck. A1 retaliated by also holding PW1's shirt firmly against his neck. Hence, the decision of this court is going to be based on the evidence on oath of the prosecution witnesses against the evidence on oath of the defence witnesses.

33. Where a decision of a court depends on the oath of the prosecution's witness against that of the accused, the position of the law is that the trial court must carefully examine the evidence of all the witnesses as well as other evidence on record before deciding which of the two versions of the event is reasonable. In **Lutterodt v. Commissioner of Police [1963] 2 GLR 429**, the court held that,

> *"Where, as in this case, the decision turns upon the oath of one prosecution witness against that of a witness for the defence, it is incumbent upon the trial court to examine the evidence of each of those two witnesses carefully along with other evidence to the other; and where his preference is for the prosecution he must make it appear from his judgment that his said preference is reasonable, for the principle of law is that if the court could not find reasonable grounds for preferring the evidence of the prosecution witness to contradictory evidence*

given by a defence witness, the prosecution has failed, because there would, at least, be reasonable doubt as to which of the two conflicting versions of the story is true, and the benefit of that doubt must be given to the defence."

34. The law is unequivocal that a court cannot reject the defence of an accused person simply because it does not believe it. Before a trial court decides whether or not an accused person is guilty beyond a reasonable doubt, it must first consider whether or not the explanation of the accused is acceptable or reasonably probable. It is only after consideration of the explanation of the accused in light of the above that the court can conclude the guilt or otherwise of the accused person. In the case **Lutterodt v. Commissioner of Police** (supra), the court further held that where a trial court *"… forms the opinion that a prima facie case has been made, the court should examine the case for the defence in three stages:*

    a. *Firstly, it should consider whether the explanation of the defence is acceptable, if it is, that provides complete answer, and the court should acquit the defendant;*
    b. *If the court should find itself unable to accept, or if it should consider the explanation to be not true, it should then proceed to consider whether the explanation is nevertheless reasonably probable, if it should find it to be, the court should acquit the defendant; and*
    c. *Finally, apart from the defendant's explanation or the defence taken by itself, the court should consider the defence such as it is together with the whole case, i.e. prosecution and defence together, and be satisfied of the guilt of the defendant beyond reasonable doubt before it should convict, if not, it should acquit."*

35. During cross-examination of PW1 by A1, PW1 denied the presence of DW1 and his wife at the crime scene. PW1 also denied A1's assertion that he and A2 met him at the entrance alone, without the family members who accompanied him to the drinking spot because they were about 80 metres ahead of him when he and A2 met him at the entrance to DW1's house. This is what he said:

"Q: Do you remember you are the one who hit me with your shoulders at the entrance of opanin Boafo's house?

A: It is not true. I was coming from the house, and you held me, then you and A2 beat me up.

Q: Do you remember that it was me, you, and A2 and Opanin Kofi Bote alone at the entrance?

A: It is not true. I was coming out with some of our family members.

Q: Opanin Boafo and his wife together with the people living in Opanin Boafo's house came to ask you to stop the insults you were raining on me.

A: It is not true. I did not see Opanin Boafo and his wife there.

Q: I put it to you that myself, Opanin Bote and A2 had met your witnesses about 80 metres before we met you at the entrance.

A: It is not true. I went together with Opanin Kyei Baffour, Amos Nkansah, Kweku Asiama and when we were coming out you met us and started beating me up. They were the same ones who intervened and took me to the police station."

36. Isn't it strange that PW1 chose to hold the first accused person's shirt instead of the second accused who had slapped him? Is it not more probable that PW1 would hold A2's shirt rather than A1's, since A2 was the one who slapped him?

37. However, during cross-examination of DW1 by the Prosecution, they admitted that indeed DW1 was at the scene but did not see what took place before PW1 held A1's mourning cloth against his neck. These were the questions put to DW1:

"Q: Can you describe to the court where the drinking spot is situated and within the house, and the gate leading to the house?

A: The drinking spot is located on the right side of the gate.

Q: Per your description, you would agree with me that if you were at the drinking spot and an incident was happening at the gate, you would not see until you get close to the gate?

A: Yes, that is true.

Q: So, you will agree with me that when you got to the gate and alleged that PW1 had held A1's clothes, an incident has already triggered?

A: Yes, but I cannot tell what happened before I got there."

38. PW1 testified that he left the drinking spot with Opanin Kyei Baffour, PW2, and PW3. However, DW1 confirmed that indeed PW1 came with the said family members to his wife's drinking spot but they took the lead while PW1 stayed behind for his change. The three men were ahead of PW1 and had to returned to the scene, but by the time they got there he and others had separated PW1 and A1. DW1 maintained this stance during cross-examination and did not falter. This is what he said:

"Q: I am suggesting to you that before you got to the scene, A2 slapped PW1 in the face.

A: I cannot tell because I was not there. When I got there, there were three men trying to separate the complainant and the first accused. The second accused was standing by…

Q: Then I am suggesting to you that two out of the four people PW1 bought them drinks, namely Amos Nkansah and Kwaku Asiamah who witnessed the incident were in court, testified and corroborated PW1's assertion that he was assaulted by A1 and A2.

A: I was not there at that time. By the time they came, we had separated the complainant and the first accused."

39. PW1 testified that he and the family members he took to DW1's drinking spot were leaving when the accused persons came there. PW2 stated that they were

on DW1's compound when the accused persons came. PW3 stated that they were on their way out when they met the accused persons on the compound. DW1 testified that the incident took place before his gate and DW2 also stated that the incident happened at the entrance of DW1's house.

40. PW1 stated that A1 held his shirt firmly while A2 slapped him. However, PW2 and PW3 testified that both accused persons held PW1's shirt simultaneously. PW2 added that the accused persons began to beat PW1 while PW3 stated that PW1 struggled to free himself from the grasps of the accused persons. PW3 who testified that A2 accidentally hit PW1's face in his evidence-in-chief insisted during cross-examination that the accused persons beat PW1. He was also adamant that PW1 was appointed by the head of family to succeed the late Adwoa Donkor. Yet in Exhibit 1, the head of family categorically denied appointing PW1 as the successor to his mother. He stated that he was not present at the funeral because of his illness. He delegated elder Akwasi Ampomah and Kwame Sarpong to represent him. This was corroborated by DW2 who testified that after the funeral, he and the accused persons went to the head of family's house to inform him about what happened during the funeral. At the house of the head of family, thy met Kwame Sarpong and Kwasi Ampomah who as the representatives of the head of family at the funeral, had come to brief him about what transpired at the funeral.

41. In the case of **the State v. Otchere [1963] 2 GLE 463**, the court held that "*A witness whose evidence on oath is contradictory of a previous statement made by him, whether sworn or unsworn is not worthy of credit and his evidence cannot therefore be regarded as being of any importance in the light of his previous statement made by him.*" I find PW1 and PW3 to be untruthful witnesses and their evidence will therefore be disregarded. I consider as false the claim by PW1 and PW2 that PW1 was appointed by the head of family as the customary successor to the late Adwoa Donkor.

42. In the case of **Dabla and others v. the Republic [1980] GLR 501**, Taylor, J. (as he then was) held that there are three types of facts which emerge at various stages of every criminal trial. They are,

a. the facts which the prosecution may give before the commencement of the actual trial, indicating the material they intend to prove by admissible evidence.
b. the facts which the accused person, may, if he chooses, lead in evidence in his defence, and
c. the facts which on a consideration of the respective facts of the prosecution and the defence, the presiding judge or magistrate finds as representing in his opinion the actual facts.

2. He held further that "*In a court of law operating under the adversary common law system it is the last specie of facts which can be considered as facts properly called and upon the basis of which the court is entitled to adjudicate or make pronouncements. The other facts are strictly speaking mere allegations, and they are not facts until the judge or magistrate accepts them as such*."

43. On the totality of the evidence before me I find the following as the facts of this case: on 28th May, 2023 the final funeral rights of the late Adwoa Donkor, mother of the complainant, PW2, and A1 was held at Adansi Apagya. After the funeral celebration, the complainant along with PW2, PW3 and Kyei Baffour took the cash donation box to the house of the deceased where the money was counted by the complainant. After counting, the complainant put the money in a black polythene bag and placed same in his pocket. He then offered to buy PW2, PW3 and Kyei Baffour drinks at Yaw Boafo's drinking spot. After they

finished their drinks, the complainant went to pay. PW2, PW3, and Kyei Baffour took the lead while the complainant waited to take his change from Margret Addai, the owner of the drinking spot. When the complainant got to the entrance of the drinking spot; he met the accused persons coming to the drinking spot. A1 and the complainant bumped into each other at the entrance. This resulted in a heated exchange between the two. A scuffle ensued between the them, which attracted the attention of Yaw Boafo and other clients of the drinking spot who rushed to the scene and assisted the second accused person to separate the complainant and the first accused person. When Kofi Botie arrived at the scene, the complainant and the first accused person were holding each other's shirt and mourning cloth respectively firmly around each other's neck. PW2, PW3, and Kyei Baffour returned to the scene when they heard noise coming from behind them. They took the complainant away from the scene. The complainant went to report the incident at the New Edubiase police station where he was issued with a police medical form. However, he did not attend hospital the same day but went on 30th May, 2023.

44. I find the explanation of the accused persons acceptable. Accordingly, they are acquitted and discharged.

H/W ANASTACIA Y.A. KARIMU ESQ.

[MAGISTRATE]